

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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VINCENT CARMONA

Plaintiff, **SECOND AMENDED
COMPLANT**

-against-

POLICE OFFICER ANGELO PIZZARO (Shield No.
29275), ANSAI KALIL (Shield No. 11189), MICHAEL
TAGGART (Shield No. 2110), JOHN DOES 1-10

11-CV-3486 (SLT)(JMA)

Jury Trial Demanded

Defendants.
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PRELIMINARY STATEMENT

1. This is a civil rights action in which the Plaintiff Vincent Carmona (“Plaintiff”) seeks relief for the violation of his rights secured by 42 U.S.C. § 1983 and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution. This case arises from a June 1, 2011 incident in which members of the New York City Police Department (“NYPD”) subjected Plaintiff to false arrest, excessive force, malicious prosecution and an illegal strip search in violation of the Fourth, Sixth, and Fourteenth Amendments to the Constitution. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney’s fees, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by the aforesaid statutes and 28 U.S.C. §§ 1331 and 1343.

3. Venue is proper pursuant to 28 U.S.C. § 1391(b) and (c) because Defendants City of New York (“City”) and the defendants are located in and subject to personal jurisdiction in the Eastern District of New York.

PARTIES

4. Plaintiff is a resident of the State of New York.

5. Police Officer Angelo Pizzaro, Ansai Kalil and Michael Taggart (“The Officers”) are members of the New York City Police Department who was acting under color of state law and in his capacity as a City law enforcement officer at all relevant times.

6. The Officers are liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from unconstitutional conduct. The Officers are sued in his individual and official capacities.

7. Police Officers John Does 1-10 (the “officers” or the “Does”) are members of the New York City Police Department who were acting under color of state law and in their capacities as City law enforcement officers at all relevant times. The Does are liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from unconstitutional conduct. The defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

8. On June 1, 2011 at approximately 10:00 p.m., Plaintiff, was lawfully walking in the vicinity of 869 Flushing Avenue in Brooklyn, New York.

9. The officers, approached Plaintiff and and placed him in extremely tight handcuffs.

10. Plaintiff was then taken to the precinct. At the precinct, Plaintiff was strip-searched. Plaintiff also had the cast removed from his broken arm. From the precinct, Plaintiff was taken to Brooklyn Central Booking.

11. While Plaintiff was confined in Brooklyn Central Booking, the officers, including the Officers, misrepresented to the Kings County District Attorney's Office that Plaintiff had committed crimes.

12. On June 3, 2011, at around 3:00 a.m., Plaintiff was released from Brooklyn Central Booking after the Kings County District Attorney declined to prosecute him.

13. As a result of Defendants' actions, Plaintiff suffered emotional distress, fear, embarrassment, humiliation, discomfort, and a loss of liberty.

FEDERAL CLAIMS AGAINST THE OFFICERS

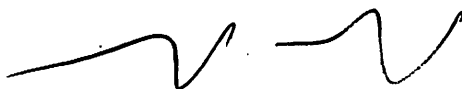
14. Plaintiff repeats and realleges the foregoing as if fully set forth herein.

15. The conduct of the Officers as described herein, amounted to false arrest, malicious prosecution, excessive force and an illegal strip search. This conduct violated Plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution.

WHEREFORE, Plaintiff demands a jury trial and the following relief jointly and severally against the Defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees;
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

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April 12, 2012
New York, New York

DATED: